

Ethics in Real Life

Analyzing IP Case Studies Through Multiple Ethical Lenses

Presenter: 24125093 - Nguyen Dinh Thien Loc
Social, Ethical & Legal Issues | HCMUS-FITUS



Today's Cases

1. **The Beatles Catalog Acquisition (1985):** Michael Jackson outbids Paul McCartney for ATV Music Publishing.
2. **"Có Công Mài Sắc" AI Cover (2026):** Gen Z creators use AI voice cloning to cover Ngo Lan Huong's song.

Case 1: The Beatles Catalog Acquisition (1985)

- **Scenario:** Michael Jackson purchased ATV Music Publishing (owning 251 Beatles songs) for \$47.5M, outbidding creator Paul McCartney.
- **The Licensing:** Jackson licensed Beatles tracks (like "Revolution") to corporate entities (e.g., Nike) for commercial ads.



Case 1: The Beatles Catalog Acquisition (1985)

- **Question:** Is it ethical to commodify and license another artist's labor against their artistic intentions?



Case 1: Ethical & Legal Analysis

- **Kantianism (FAIL):** Treating McCartney's labor and catalog investment advice merely as a tool for personal financial profit.
- **Utilitarianism (SPLIT):** High financial gains for Jackson and licensees, but significant emotional harm and frustration to the original creators.
- **Cultural Relativism (CONTESTED):** Standard capitalistic business practice in the West, but highly criticized within the artistic community.
- **Social Contract (FAIL):** Violates implicit collaborative agreements and friendship expectations.
- **Virtue Ethics (WRONG):** Lacks virtues of loyalty, professional integrity, and mutual respect.
- **Verdict:** Legally valid copyright transaction, but ethically compromised.

Case 2: The "Có Công Mài Sắc" AI Cover (2026)

- **Scenario:** Creators remixed Ngo Lan Huong's song "Có Công Mài Sắc" into Afrobeat and used unauthorized AI vocal clones of famous singers for covers.
- **The Backlash:** The singer requested fans to stop, citing emotional flatness, mispronunciations, and distortion of her original work.



Case 2: The "Có Công Mài Sắc" AI Cover (2026)

- **Question:** Does unauthorized AI voice cloning and distribution infringe on performer rights and artistic integrity?



Case 2: Ethical & Legal Analysis

- **Kantianism (FAIL):** Using synthesized voices and identities merely as tools for content views and monetization without consent.
- **Utilitarianism (SPLIT):** Brief entertainment value for audiences vs. direct harm to the original artists' reach, revenue, and creative control.
- **Cultural Relativism (TENSION):** Normalized as creative remixing by Gen Z creators, but rejected by traditional artists and legal entities.
- **Social Contract (FAIL):** Violates Article 32 of the Vietnam Civil Code (personality rights) and Article 29 of the Vietnam IP Law (performer rights).
- **Virtue Ethics (WRONG):** Lacks honesty and respect for original artistic expression.
- **Verdict:** Legally and ethically unacceptable due to lack of artist consent.

Theory Comparison

Theory	Case 1: The Beatles Catalog	Case 2: "Có Công Mài Sắc" AI Cover
Kantianism	Wrong	Wrong
Social Contract	Wrong	Wrong
Virtue Ethics	Wrong	Wrong
Cultural Relativism	Contested	Tension
Utilitarianism	Split	Split

Conclusion

- **Legal Difference:** Michael Jackson bought a contractual right to music, while the AI creators infringed upon a fundamental personality right.
- **Moral Commonality:** Despite the legal difference, morally they are the same.

Key Takeaways

1. **Legality vs. Morality:** Having legal ownership of a copyright does not automatically resolve ethical duties to the creators.
2. **Voice Identity Protection:** Under Vietnamese law (Civil Code Art. 32 & IP Law Art. 29), unauthorized AI voice cloning is a direct legal infringement.
3. **Respecting Creative Integrity:** Preserving the emotional and authentic quality of a performance is essential for a healthy creative ecosystem.

THANK YOU FOR LISTENING